

STATE OF NEW YORK

894--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. SEPULVEDA, GOUNARDES -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to requiring public school districts to provide language assistance to limited English proficient parents of students

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 305 of the education law is amended by adding a new
2 subdivision 57 to read as follows:

3 57. a. All school districts shall establish a language assistance
4 program where limited English proficient parents would have effective
5 access to communicate with teachers and school personnel. This compre-
6 hensive program shall include, but is not limited to:

7 (1) Providing that all frequently used forms and other written materi-
8 als that are sent home to limited English proficient parents are in
9 their primary language;

10 (2) Providing language assistance to limited English proficient
11 parents in their primary language who call or come into school with
12 concerns related to their child's schooling;

13 (3) Providing language assistance services to limited English profi-
14 cient parents in their primary language to facilitate parent attendance
15 at school-sponsored programs designed for communication with parents
16 including, but not limited to, parent-teacher conferences, workshops and
17 school fairs.

18 b. A notice of the availability of the language assistance programs
19 for limited English proficient parents established pursuant to paragraph
20 a of this subdivision shall be mailed to the homes of such limited

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 English proficient parents in a notice written in their primary
2 language.

3 c. Each school district shall keep a record documenting its language
4 assistance program and shall submit a summary report annually to the
5 commissioner. Such record and report shall include, but not be limited
6 to:

7 (1) The number of limited English proficient parents who receive such
8 assistance;

9 (2) The number of limited English proficient households where one
10 parent is English language proficient;

11 (3) The number of complaints filed by limited English proficient
12 parents; and

13 (4) The number of bilingual personnel used to assist in the language
14 assistance and translation services.

15 d. The commissioner shall promulgate such rules and regulations as may
16 be necessary and proper to implement the provisions of this subdivision,
17 including but not limited to, the methodology to be used by each school
18 district to determine or assess the primary languages, the number of
19 limited English proficient parents, the percentage of limited English
20 proficient parents to students and the native language of such limited
21 English proficient parents, and a complaint procedure for any parent who
22 alleges a school's non-compliance with the provisions of this subdivi-
23 sion.

24 e. For purposes of this subdivision:

25 (1) "Primary language" means one of the five most common languages in
26 a school district, other than English, spoken and used to communicate,
27 by limited English proficient parents.

28 (2) "Limited English proficient parents" means parents or parent of a
29 minor child who attends public school and such parents or parent is
30 unable to communicate effectively in English with teachers and school
31 personnel at the school attended by such parent's child.

32 (3) "Parent" shall have the same meaning as "parental relation" in
33 subdivision ten of section two of this title.

34 f. Nothing in this subdivision shall prohibit a school district from
35 entering into a cooperative agreement with other school districts to
36 jointly establish such a language assistance program.

37 g. This subdivision shall only apply to school districts where non-
38 English speaking residents or limited English proficient parents consti-
39 tute more than five percent of the residents of such school district, as
40 determined by data from the two most recent federal decennial censuses.

41 § 2. This act shall take effect on the one hundred eightieth day after
42 it shall have become a law. Effective immediately, the addition, amend-
43 ment and/or repeal of any rule or regulation necessary for the implemen-
44 tation of this act on its effective date are authorized to be made and
45 completed on or before such effective date.